FORMAL SUBMISSION / RECIPIENT-SPECIFIC COVER

Data-protection complaint and case processing

INTENDED RECIPIENT

DWP Data Protection complaints team / Data Protection Officer

ORIGINAL MATTER / RELEVANT DATE

Data-protection complaint first raised 31 August 2026

REQUEST

Investigate access-request handling and answer specific processing and accuracy questions.

Action requested from this team

1. Confirm registration, acknowledgement, owner, investigation and written outcome.
2. Investigate how the 17 July SAR was received, routed and processed.
3. Explain case-specific processing, third-party-data safeguards, retention and automation questions.
4. Identify correction routes while preserving the original SAR, complaint and claim-review records.

LINK III - AUTHORISED ACCESS FOR THIS DOCUMENT

https://drive.proton.me/urls/HZVXXYQE0M#QKEnc402igQi

Please confirm that this link opens the intended document and advise promptly if an authorised alternative is needed.

This is a separate data-protection complaint; it does not determine the UC award.

SIGNED BY CLAIMANT



Toms Jansons

Date: 10 October 2026

Claim Review - Formal Factual and Legal Submission

Formal complaint: subject access handling, outstanding information and Claim Review coordination

From: Toms Jansons
Date: 10 October 2026
Historical factual cutoff: 9 October 2026
To: DWP Complaints Team; DWP Right of Access/Data Protection team and Data Protection Officer
For coordination with: Universal Credit Claim Review team and responsible manager

1. Complaint and requested outcome

Please investigate the handling of my **subject access request (SAR) of 17 July**, my **data-protection complaint of 31 August**, and my **service-complaint request of 17 September**.
Please also resolve the outstanding Claim Review questions and confirm my **current claim and payment position**.

Please provide a coordinated written response identifying the records, decisions, responsible teams, next actions and correction routes.
Preserve the original dates and correspondence.
Practical resolution sought: once unchanged evidence has been received, please confirm whether the evidence requirement is satisfied, whether the Claim Review can be completed, and the resulting claim/payment position. Closure of the review must not be confused with closure of my claim or withdrawal of the three separate access/complaint matters.

> **Requested safeguard.** I ask for practical safeguards: accurate records, lawful and proportionate use of my personal data, meaningful consideration of my explanations, and a written outcome with a usable correction or challenge route.
> Please protect my dignity by giving clear requirements and identifying who can resolve each outstanding point.
> These requests recognise DWP's responsibility to verify entitlement and do not seek exemption from relevant evidence requirements.
> See section 9.

By 9 October, 84 calendar days had elapsed since the SAR. I have not identified a SAR acknowledgement or reference, substantive response, identification or clarification request, or extension notice.
Please investigate receipt and routing.
For any item DWP says it issued, provide a copy and the receipt, issue and delivery details.

I acknowledge DWP's substantive September explanations and Mohammed's **limited acknowledgement of 6 October at 14:52**.
This complaint concerns the remaining questions, ownership, complaint registration and current position.

This is not a request to close my claim. It supplements the 7 and 21 September responses, 6 October journal message and the separately identified 9 October appointment explanation.
The offer of access to original bank statements does not itself establish DWP receipt, compliance or agreement to an alternative route, and does not suspend any evidence or decision-challenge deadline.
No extension is assumed.

As at the historic correspondence cutoff reported here, I have identified no further substantive claim-review reply, payment statement or formal decision after Mohammed's 6 October, 14:52 response. The claimant separately reports submitting a work-search appointment explanation on 9 October at 20:29; that submission is not evidence of any review decision or substantive reply.

Separate matters for response

Matter	Original date	Responsible route and requested handling
A. Subject access request	**17 July 2026**	Right of Access team: complete the original SAR without resetting its date or scope.
B. Data-protection complaint	**31 August 2026**	Data Protection team/DPO: investigate the handling of the SAR and provide the complaint outcome.
C. Service complaint	**17 September 2026**	DWP Complaints team: confirm registration, ownership, document linkage and corrective action.
D. Claim Review and payment	**Review opened 25 August 2026**	Claim Review team and authorised decision-makers: confirm evidence, time, decisions and the current payment position.

2. Relevant recorded chronology

Dates: all chronology dates are in 2026.

Times: the recorded times follow the journal; the 6 October 14:52 reply is the separately supplied acknowledgement.

J: Universal Credit journal export; most recent entry in supplied file is dated 6 October 2026. The U9/PC10 supplements are claimant-provided material outside that export.

U9: My account of the 9 October 2026, 20:29 completed missed-appointment explanation, following GP and hospital appointments and during infection-control/recovery concerns. The original to-do screenshot, clinical records, DWP acceptance and subsequent decision are not contained in the supplied journal export.

R7: formal factual response dated 7 September.

R21: formal factual response dated 21 September.

A6: Mohammed's acknowledgement dated 6 October at 14:52.

Document references and access: see section 7.

2.1 Original access request and opening of the review

Date and source	Recorded event	Position to preserve
17 July, 12:26 - J	SAR made through my UC journal for personal data held by DWP, including UC/JCP records and listed categories where held.	**Original request date and scope;** no assertion that every category exists.
30 July, 12:57 - J	I requested routing to the Right of Access/data-protection team.	Follow-up to the existing SAR.
25 August, 15:42 - J	Claim Review opened; evidence requested by 8 September, with warnings about possible payment consequences.	Requirement and warning; no implemented consequence established by that entry.
31 August, 10:33 - J	I complained about the SAR's overdue status and asked for receipt, routing, response and any timing-adjustment details.	**Original data-protection complaint;** it did not replace the SAR.
31 August, 10:45 - J	I requested Claim Review clarification and additional time.	**An extension request, not an approved extension.**

3.2 Outstanding information

DWP supplied meaningful explanations of purpose, statement scope, access, third-party relevance and human decision-making.
The remaining issues include whether narrower evidence can meet the purpose, the outcome of alternative-route and additional-time requests, protection of incidental third-party information, and retention of copies, extracts or resulting records elsewhere.
The UC viewing/removal explanation does not establish the lifecycle of every such record.

3.3 Ownership and continuity

Alia, Mohammed and Huzaifah are identified journal contributors.
That does not establish which role can decide an evidence alternative, additional time, a payment referral or the complaint.
Please investigate whether the relevant correspondence was linked and considered, and identify a coordinating contact with access to the responsible teams.

Mohammed's 6 October reply confirms that correspondence was noted and remained available for consideration.
Its general procedural wording does not establish that the responsible reviewer considered the two PDFs or that any specific question was answered.
The description of an ongoing review is not a decision notice or confirmation of the payment position.
Please provide those case-specific confirmations rather than relying on the acknowledgement alone.

3.4 Accurate record and consequences

Please distinguish receipt from substantive consideration, correspondence uploads from bank statements, warnings from decisions, and decisions from implemented payment effects.
If any adverse conclusion about my engagement is relied on, identify the conduct, evidence and correction or challenge route.
Preserve my original words alongside any later correction.
Criticism of service handling should be assessed separately from the evidence and entitlement questions.

3.5 Impact on wellbeing and essential costs

Repeatedly reconnecting messages, documents and unanswered requests has affected my wellbeing and concentration.
Uncertainty about payment affects planning for essential living and housing costs.
Please take this into account when prioritising a response and exercising any available discretion.
I am not asserting that an unconfirmed payment loss or housing consequence has already occurred.

Relevant mitigating circumstances - updated 10 October 2026. I am unemployed as at 9 October 2026. I was homeless from 26 August 2025 to 14 May 2026, after my planned departure from study in 2025. **My family and I have lived separately since 2017, and I describe our relationship as estranged.** These circumstances are relevant context for my support arrangements, financial and housing stability, and practical ability to respond. They are my account; this statement does not assume financial support, shared residence or access to family resources without a factual assessment. Please take the circumstances into account where the applicable rules permit and identify any focused evidence genuinely required. The underlying benefit evidence obligations remain.

Requested safeguard. Please assess held information by its content, purpose or effect in relation to me, rather than limiting access to my name or isolated identifiers.
Search relevant departmental holdings within the original scope where reasonable and proportionate, and include context where necessary to make my personal data intelligible.
This is subject to Article 15(1A), applicable exemptions and others' rights; it is not a demand for every document or all underlying reasoning.
Ashley v HMRC supports this bounded approach; see section 9.2.

4.4 Case-specific processing explanation

Identify the purposes, legal bases, specific recipients (or categories where legally permitted) and retention periods or criteria for the relevant records.
DWP's charter describes general processing grounds; please explain their application here.
Clarify the treatment of incidental third-party information and copies, extracts or records outside the UC viewing service.
State the scope of the 8 September assurance about automation and whether automated matching, profiling or risk scoring was used in my case, identifying human involvement and any information required by the applicable access rights.
I am requesting clarification, not alleging that such processing occurred unlawfully.

Requested safeguard. Please distinguish recipient disclosures from access by staff acting under DWP's authority, and identify the relevant role/team where a staff name cannot properly be supplied.
Identify the processing ground rather than assuming consent is required.
If a solely automated significant decision within the current Articles 22A-22C is identified, explain the safeguards for information, representations, human intervention and contesting it.
Matching or profiling alone does not establish such a decision.
See section 9.3.

4.5 Evidence requirements and requests for additional time

Confirm whether the unchanged originals offered through [Restricted: contact authorised Claim Review team] can be retrieved and accepted for this review. If not, explain the technical/administrative obstacle and confirm a practical official secure alternative. State the outstanding evidence, exact statement period, approved submission route and current deadline.
Give the outcome and reasons for my requests for more time, narrower evidence or an alternative submission/review route. Where discretion is available, say whether my documented housing instability, unemployment and wellbeing concerns were considered, by whom, and with what result.
If another team must decide, identify it and confirm referral, ownership and a response date.

Requested safeguard. Where regulation 45 applies, please identify the information-requirement notification and explain the period allowed and consideration of any longer period shown to be necessary.
Please also consider the impact described in section 3.5 when exercising available discretion.
I do not claim an automatic entitlement to redaction, an alternative route or an extension, and do not present prepared-but-unprovided statements as compliance.
See section 9.5.

4.6 Ownership and document linkage

Identify the review lead or team, coordinating contact, responsible manager and roles authorised to decide evidence, time and payment matters.
Confirm access to, and substantive consideration of, my 7 and 21 September responses and relevant journal messages.
List answered points, remaining points and the team responsible for each.
Explain any inability to provide an individual's name and identify a usable role/team contact instead.

Requested safeguard. Please give my relevant explanation meaningful consideration through the applicable process and a usable opportunity to address any material adverse concern, so that participation can affect the assessment.
Confirm what was considered and what remains to be answered.
This is a request for fair, practical handling in its context; it does not assert a universal oral-hearing right or a duty to defer every action.
See section 9.6.

4.7 Service complaint and record correction

Confirm registration, reference, handler and expected response for the 17 September service complaint.
If it was not registered, register it now while retaining the date first raised and investigate the delay.
Explain how I can challenge inaccurate personal data or case notes.
Please preserve originals and correction history, relevant decision records and audit/referral records for the outstanding access and complaint work, subject to lawful retention requirements.

Please structure the response so that each item identifies its answer or outstanding status, supporting record, responsible team, next action and date.
Referral alone should not be presented as resolution.
If an error is established, identify the correction, affected records or decisions and any remedy considered.

Requested safeguard. Under Articles 5(1)(d) and 16, inaccurate personal data concerning me should be rectified without undue delay and incomplete data completed as appropriate to the processing purpose.
In particular, please check any record relied on against the distinctions in section 3.4 and my express no-closure position.
Identify the disputed record and correction route, retain a clear history where lawful, and distinguish recorded opinion from fact; disagreement alone does not make an opinion inaccurate.
See section 9.4.

4.8 Correct status and benefit-decision routes

Legal representation. Please address the residence record and grounds in sections 3.6 and 9.7 if residence is material to this review.
If any benefit decision relied on is identified and disputed, provide the decision, notification and available revision or challenge route, and refer the issue to the authorised decision-maker.
A data correction or service complaint must not be treated as deciding the benefit award.

Conditional decision correction. If the records establish that a specified decision arose from a qualifying official error or another statutory ground for revision at any time, I will identify that decision, the particular factual or legal error and the evidence relevant to its original date.
Please then consider the application under the correct provision and provide the written outcome and applicable reconsideration or appeal information.
General dissatisfaction, hardship or delay alone does not establish official error.
This submission does not identify a particular adverse benefit decision or itself supply a completed decision-specific reconsideration or appeal.
Ordinary challenge deadlines must still be addressed promptly.
See section 9.8.

5. Timeframes, communication and separate routes

5.1 Subject access and data-protection complaint timeframes

Revised legal basis. UK GDPR Article 12(3), read with Article 12A, requires action without undue delay and ordinarily within one calendar month from the applicable starting point.
A necessary complexity/number-of-requests extension requires notice and reasons within the initial period.
Identification, a lawful fee or reasonably required clarification may affect the calculation only where the applicable conditions are met.
If DWP received the SAR on 17 July, without an applicable timing adjustment, the ordinary response date was 17 August, 53 calendar days before the 9 October factual cutoff.
Please provide the actual calculation, notices and delivery evidence; internal routing alone does not establish a valid adjustment. [1] See section 9.1.

Revised legal basis. DPA 2018 section 164A(3)-(5) requires acknowledgement within the 30-day period beginning when the complaint is received, appropriate steps to respond without undue delay, progress information and notification of the outcome without undue delay.
The relevant duties apply to complaints received on or after 19 June 2026.
If DWP received my data-protection complaint on 31 August, 39 calendar days had elapsed by 9 October and the 30-day acknowledgement period had expired.
Please provide the receipt and acknowledgement records, enquiries, updates and outcome, or explain what remains outstanding and when it will be completed.
Keep this separate from the SAR and service-complaint clocks. [2] See section 9.1.

5.2 Complaint response and interim confirmation

Please acknowledge this submission, confirm routing and provide references and response dates within five working days of receipt; this is my requested interim timeframe.
DWP publishes a usual 15-working-day complaint-resolution target but currently warns of delays due to high complaint volumes.
Please give a realistic date and progress updates, and provide the live payment information without waiting for the complaint outcome. [3]

5.3 Written communication

Please use my journal wherever reasonably practicable, provide substantive outcomes in writing and confirm an alternative correspondence route if journal access changes.
My earlier 48-72-hour processing-time request does not itself change a deadline.

5.4 Separate escalation and decision-challenge routes

If unresolved, I may raise the data-protection matters with the ICO, supplying the original request and complaint, correspondence, chronology and available evidence of impact.
This does not assume a fixed ICO completion date or an award of compensation by the ICO.
For service maladministration, I may use DWP's final-response route to the Independent Case Examiner and, after its final response, seek MP referral to the Parliamentary and Health Service Ombudsman, subject to the published time limits.
I may also seek independent legal advice.
This complaint does not replace any applicable mandatory reconsideration or appeal. [3][4]

8. Official references

The references below identify the legal and administrative provisions relevant to my requests. Their application depends on the actual DWP records and any decision issued. The specific challenge route and deadline should be confirmed for any decision.

1. ICO - Responding to a subject access request.
2. ICO - Handling data-protection complaints.
3. DWP - Complaints procedure, decision challenges and escalation.
4. ICO - Making a data-protection complaint.
5. DWP - Personal information charter. Relevant to subsection 4.4.
6. ICO - Right of access and supplementary information. Relevant to subsections 4.3 and 4.4.
7. DWP ADM chapter C1 - residence, C1871. See section 9.7.
8. TR and GD v SSWP [2025] UKUT 332 (AAC) - corrected judgment, paragraphs 116-121. See section 9.8.
9. Data (Use and Access) Act 2025, sections 78, 80(1), 103 and 142(2)(b), and SI 2026/82, regulations 2(h), 2(j), 3(a), 4, 5 and 7. See sections 9.1-9.3.
10. DWP ADM 12/25, paragraphs 3-14, read with ADM 7/26, paragraphs 3-7. Transition dates depend on the award and cohort; see section 9.5.

9. Legal basis supporting the requested action

The legal provisions below are applied conditionally to the chronology and available evidence.

This annex supports sections 1, 3-5.
It adds no historical event, finding of breach, benefit decision or proved payment loss.

9.1 Access and data-protection complaint are separate duties

Return to Concern 1.

Original SAR - sections 4.2-4.3 and 5.1. UK GDPR Articles 12(3) and 12A govern the response period.
The timing amendments in DUAA 2025 section 76 commenced on 5 February 2026; the saving for earlier requests does not apply to a July request.
An adjustment requires its own lawful conditions and dated evidence.
Please identify actual receipt, any necessary identification or clarification request, extension notice and reasons, and the response/delivery record.
On the conditional 17 July receipt -> 17 August ordinary calculation, the interval to 9 October is 53 calendar days.
Actual receipt and any lawful adjustment still require investigation.
See commencement regulations 2(h) and 4 and reference [1].

31 August complaint - sections 4.2 and 5.1. DPA 2018 section 164A, inserted by DUAA section 103, requires facilitated complaints, acknowledgement within the 30-day period beginning when the complaint is received, appropriate enquiries and progress information, and an outcome without undue delay: subsections (2)-(5).
On receipt on 31 August, 39 calendar days had elapsed by 9 October, beyond the acknowledgement period; actual receipt and steps taken remain to be established.
Regulation 3(a) commenced section 103 on 19 June 2026. Regulation 7 limits the duties in section 164A(3)-(4) to complaints received on or after that date.
Please identify the original receipt and actual compliance steps.
The 30-day acknowledgement period is not a fixed period for completing every investigation, and does not postpone the duty to respond without undue delay.
No separate statutory SAR acknowledgement deadline is asserted. [2]

9.2 Personal data, relevant searches and intelligible copies

Sections 4.3 and 4.6. Michael Ashley v Commissioners for HMRC [2025] EWHC 134 (KB) supports examining information about an individual by its content, purpose or effect, considering relevant departmental holdings, and supplying context where necessary for intelligibility.
The tax-investigation facts differ from this review.
The judgment rejects treating an entire enquiry, every policy document or all decision-making reasoning as personal data.
Its application to held DWP records requires the relevant information and controller relationship, not an assumption about what exists.

The current search limit is UK GDPR Article 15(1A), inserted by DUAA section 78: reasonable and proportionate searches.
Section 78 came into force on Royal Assent, 19 June 2025, under section 142(2)(b); it did not require inclusion in SI 2026/82.
Please identify the relevant holdings searched and explain limitations insofar as legally permissible.
Access remains to personal data and required supplementary information, with necessary context; it is not unrestricted document disclosure.
Article 15(4) and DPA 2018 Schedule 2, including applicable crime/risk-assessment, third-party and privilege provisions, may limit disclosure where their specific conditions are satisfied.
A general “review” label does not itself establish an exemption. [6]

9.3 Lawful processing, privacy and automation

Section 4.4. UK GDPR Article 15(1)(a)-(d), (g)-(h) concerns purposes, categories, recipients, retention, sources and applicable automation information.
Articles 13(1)(c) and 14(1)(c) separately address purposes and legal basis when their conditions apply.
Article 6 and DWP’s charter permit grounds other than consent, including legal obligations and public functions.
Please identify the actual ground and purpose here and how relevant, proportionate evidence and incidental third-party data are handled.
External recipients and internal staff acting under the controller’s authority are different questions; usable role/team contact is requested without asserting a right to all staff names. [5][6]